

AML/CFT Public Statement

Accounting Services

Protecting our clients and New Zealand's financial system

As accountants, we're legally required to carry out the Anti-Money Laundering and Countering Financing of Terrorism (AML/CFT) checks. This helps prevent financial crime and ensures we comply with professional and legal regulations. This statement intends as public information and should be read together with our engagement letter, authority to link to 3rd parties, and any matter-specific information request we provide to you.

Our accounting and AML/CFT obligations

Bird & Yang Accounting Limited provides accounting, taxation and business advisory services. We are committed to acting professionally, ethically, and in compliance with New Zealand law, professional obligations, client acceptance procedures, Inland Revenue requirements, and applicable AML/CFT obligations.

Where our accounting, taxation, business advisory, company-related, trust-related, or other professional services involve activities covered by the AML/CFT regime, we may be required to complete Customer Due Diligence (CDD) before we can accept instructions, continue acting, or carry out certain work.

Why we ask for information

AML/CFT and client acceptance checks help us understand who our client is, who owns or controls a business or entity, who is authorized to instruct us, the nature and purpose of the services required, and where relevant, the source of funds or source of wealth connected with a transaction or business relationship.

These checks are part of a standard professional compliance process. They are not a reflection of our trust in any individual client.

Information we may request

Depending on the client and the services requested, we may ask for proof of identity, proof of residential address, date and place of birth, other names used, IRD numbers, GST details, business information, company or trust documents, partnership or estate information, details of beneficial owners and controlling persons, and authority for anyone instructing us on behalf of a client.

For companies, trusts, partnerships, estates, or other entities, we may request information about directors, shareholders, trustees, beneficiaries, settlors, partners, executors,

authorized contacts, and any individuals who ultimately own or control the client or the business relationship.

Accounting matters where checks may be required

AML/CFT or client acceptance checks may be required when we take on a new client, provide tax agency services, assist with company, trust, partnership, or estate matters, support business structuring or restructuring, liaise with Inland Revenue or Companies Office, assist with significant transactions, or provide services involving complex ownership structures or cross-border element. We may also need to update information during an ongoing engagement if there is a change in business structure, ownership, tax residence, authorized contacts, source of funds, source of wealth, or other circumstances relevant to our work.

Source of funds and source of wealth

Source of funds generally means the origin of the money used for a specific transaction or business activity. Examples may include business income, employment income, savings, loan proceeds, sale proceeds, investment returns, capital contributions, or other lawful sources.

Source of wealth generally means how a person or entity generated their overall wealth or assets. In some cases, we may need to ask how wealth was accumulated and request supporting evidence.

Supporting documents may include bank statements, financial statements, tax records, sale and purchase documents, loan documents, employment income records, dividend records, inheritance documents, accountant or solicitor confirmations, or other evidence relevant to the matter.

IRD and tax agency information

Where we are appointed as your tax agent, we may need authority to access and handle information held by Inland Revenue for the tax types agreed with you, communicate with Inland Revenue on your behalf, and link you to our tax agency where required.

We may use information obtained through Inland Revenue systems and communication channels to provide agreed tax, GST, PAYE, FBT, income tax, working-for-families, donation tax credit, or other tax-related services, unless you limit that authority in writing.

When information must be provided

We will let you know what information is required as early as possible. You must provide complete, accurate, authentic, current, and timely information and supporting documents when requested.

Where AML/CFT, professional, client acceptance, or Inland Revenue requirements apply, we may be unable to act, continue acting, lodge work, access information, liaise with authorities, or complete services until the required checks have been completed to our satisfaction.

Certified copies and verification

Where certified copies are required, certification should generally be recent and completed by an appropriate certifier, such as a lawyer, Justice of the Peace, notary public, chartered accountant, police officer, registered medical doctor, registered teacher, minister of religion, or Member of Parliament.

If you bring original documents to our office, we may copy and certify them for our file where appropriate.

How we protect your information

We treat all client information confidentially. Information provided for AML/CFT compliance purposes will be handled securely and used for client verification purposes only.

We will not disclose information except which were authorized by you, required or permitted by law, required by professional obligations, or reasonably necessary to provide the agreed services and manage our relationship with you.

Our risk-based approach

Bird & Yang Accounting Limited takes a practical, risk-based approach to AML/CFT and client acceptance. We consider the nature of the client, business structure, ownership and control arrangements, tax profile, countries or institutions involved, source and movement of funds, services requested, and any other relevant risk factors.

Where required, we may ask follow-up questions, request additional documents, conduct public register or database checks, complete enhanced due diligence, or update information during the course of an engagement.

AML/CFT administration costs

Completing AML/CFT and client acceptance checks requires time and administrative resources. In some matters, an AML/CFT administration fee may apply. The amount will depend on the nature and complexity of the client or matter, the level of due diligence required, and the time involved in reviewing and verifying information.

Where additional or enhanced due diligence is required, we will work with you to make the process as clear and efficient as possible.

Questions



If you have any questions about our AML/CFT, identification, client acceptance, or tax agency information requirements, please contact us before providing documents or authorizing us to act.

Contact

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